
23CV-04736

Maria Rodriguez Barajas vs Dollar General Corporation

Motion for Order Deeming Matters Contained in Requests for Admission, Set Two, Admitted, & Request for Sanctions

Plaintiff's motion to have Requests for Admission, Set Two, deemed admitted is GRANTED. Defendant failed to provide timely responses to Requests for Admission, Set Two. The matters specified in Plaintiff's Requests for Admission, Set Two, are deemed admitted, unless Defendant serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure § 2033.220.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of \$250 are to be paid to Plaintiff within thirty (30) days of this court's order.

Motion for Order Compelling Responses to Form Interrogatories, Set Three & Request for Sanctions

Plaintiff's motion to compel responses to Form Interrogatories, Set Three, is GRANTED. Defendant has failed to provide timely responses to Form Interrogatories, Set Three. Objections are waived.

Defendant shall serve verified, code-compliant responses, without objections, within thirty (30) days of the date of service of this order.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of \$250 are to be paid to Plaintiff within thirty (30) days of this court's order.

25CV-04165

Tamela Qualls vs Department of Motor Vehicles

Writ of Mandate

Appearance required.

26CV-00334

Raymond Lamerson vs MeyerPink Law, et al.

Motion to Strike Pursuant to Code of Civil Procedure 425.16

Defendant MeyerPink Law's special motion to strike is GRANTED WITHOUT LEAVE TO AMEND.

An anti-SLAPP motion is analyzed in two stages, or prongs. First, the moving party must make a threshold showing that the challenged cause of action arises from an act in furtherance of the right of petition or free speech in connection with a public issue. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.) Where the moving party meets this burden, the analysis proceeds to the second prong: the burden shifts to

the plaintiff who must demonstrate a probability of prevailing on the claim. If the plaintiff fails to meet this burden, “the court must strike the cause of action.” (*Ibid.*)

Defendants make a threshold showing the challenged causes of action arise from protected litigation activity in the underlying custody action. (See, Code Civ. Proc. § 425.16, subd. (e).) “The litigation privilege, codified at Civil Code section 47, subdivision (b), provides that a ‘publication or broadcast’ made as part of a ‘judicial proceeding’ is privileged. This privilege is absolute in nature, applying ‘to *all* publications, irrespective of their maliciousness.’ ” (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241, [italics in original].) Moreover, the privilege “is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.” (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057.)

This shifts the burden to Plaintiff to show a legally sufficient claim that is supported by evidence sufficient to allow the court to determine whether there is a probability Plaintiff will prevail on his claims. (See, *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 568.) Although presented as a cause of action for violation of Penal Code section 632, Plaintiff’s complaint is essentially a motion to exclude evidence. This is apparent as Plaintiff’s opposition centers squarely on the admissibility of the recording at issue in both this matter and the underlying custody action in which the recording was sought to be used by Defendant. These same evidentiary issues have been addressed by the court in the related custody action.

Plaintiff’s opposition fails to present admissible evidence that establish Defendant had any role in the recording of the subject conversation in violation of Penal Code section 632. Moreover, Plaintiff does not present any evidence to overcome the litigation privilege. As such, Plaintiff has not met his burden to show a likelihood of success.

Motion to Strike and Request for Attorney’s Fees and Costs Pursuant to Code of Civil Procedure section 425.16

Defendant Lindsey Ann Thomas’ special motion to strike is GRANTED IN PART WITHOUT LEAVE TO AMEND and DENIED IN PART WITHOUT PREJUDICE.

An anti-SLAPP motion is analyzed in two stages, or prongs. First, the moving party must make a threshold showing that the challenged cause of action arises from an act in furtherance of the right of petition or free speech in connection with a public issue. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.) Where the moving party meets this burden, the analysis proceeds to the second prong: the burden shifts to the plaintiff who must demonstrate a probability of prevailing on the claim. If the plaintiff fails to meet this burden, “the court must strike the cause of action.” (*Ibid.*)

Defendants make a threshold showing the challenged causes of action arise from protected litigation activity in the underlying custody action. (See, Code Civ. Proc. § 425.16, subd. (e).) “The litigation privilege, codified at Civil Code section 47, subdivision (b), provides that a ‘publication or broadcast’ made as part of a ‘judicial proceeding’ is privileged. This privilege is absolute in nature, applying ‘to *all* publications, irrespective of their maliciousness.’ ” (*Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241, [italics in original].) Moreover, the privilege “is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.” (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057.)

This shifts the burden to Plaintiff to show a legally sufficient claim that is supported by evidence sufficient to allow the court to determine whether there is a probability Plaintiff will prevail on his claims. (See, *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 568.) Although presented as a cause of action for violation of Penal Code section 632, Plaintiff's complaint is essentially a motion to exclude evidence. This is apparent as Plaintiff's opposition centers squarely on the admissibility of the recording at issue in both this matter and the underlying custody action in which the recording was sought to be used by Defendant. These evidentiary issues have been addressed by the court in the custody action.

Plaintiff's opposition presents no evidence to establish Defendant had any role in recording the subject conversation in violation of Penal Code section 632, and does not allege vicarious liability under Civil Code section 1714.1. Nor does Plaintiff present authority that one parent may be liable to another parent of the same child for that child's alleged wrongdoing. Moreover, Plaintiff does not present any evidence to overcome the litigation privilege. As such, Plaintiff has not met his burden to show a likelihood of success.

The request for attorney's fees is **DENIED WITHOUT PREJUDICE** to a separate, properly noticed motion for attorney's fees.

26CV-02115 Petition of: Daniel Villalobos, et al.

Order to Show Cause Re: Name Change

Appearance required. Appear to show proof of publication of this petition by two parents to change the name of their minor children.

26CV-02511 AgWest Farm Credit, PCA, et al. vs Hundal Farms, Inc., et al.

Motion for (1) Appointment of Receiver and (2) Preliminary Injunction in Aid of Receiver

Appearance required. A notice of stay of proceedings was filed by Plaintiff's counsel on June 2, 2026, however no documents were attached to indicate what type of court filing ostensibly induced the stay of local proceedings. Appear to address the stay and to schedule a status hearing, pending the resolution of the related matter.

In the event a stay is not appropriate, required, or approved by this Court, depending on the nature of the ancillary court filing ostensibly giving rise to a stay of local proceedings, Plaintiff's motion will be heard as originally calendared. The tentative ruling for this motion is reflected below:

Plaintiff's unopposed motion for appointment of receiver and preliminary injunction in aid of receiver is **GRANTED**.